OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Questions for CEO Andrew Constance on his Nowra podcast claims and his role under the Act

Sent 10 November 2026 · To Shoalhaven City Council · Response requested by 24 November 2026

The Nowra podcast — the questions behind your claims, and a question about your role under the Act

To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council
Copied to: the Mayor and all councillors
From: Stephen Prothero, Eye on Shoalhaven Council
Date: 10 November 2026
Subject: The Nowra podcast — the questions behind your claims, and a question about your role under the Act

STATUS OF THIS LETTER

This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.
It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.

Replies will be published in full. If no reply is received, that will be recorded as it stands.

Mr Constance,

On the Nowra.org.au podcast you said: “The buck stops with me, so if you've got a criticism of the council, level it at me.”

I have taken you at your word.

I checked 30 claims from the interview against the public record and published the result (The CEO Invited Criticism. Here It Is.). This letter asks the questions that check raised. It then asks about something more basic, which is your role under the Local Government Act 1993.

Part 1: questions arising from the podcast

Question 1. You described Newcastle's university law faculty as "a $20 million investment". The University of Newcastle's NeW Space building, which houses the Faculty of Business and Law, cost $95 million: $30 million Commonwealth, $25 million NSW and $40 million University. What is the source for $20 million?

Question 2. You said, "We've got to introduce FOGO in the next couple of years." Council's FOGO page says Council is "currently researching the options" and gives no date. Which Council resolution or report sets a start date?

Question 3. You said, "I know the rating structure is wrong." Which resolution, report or briefing supports that, and have councillors been briefed on it?

Question 4. You said you have "a few things that... become very apparent very soon" on a new Nowra hotel. What are they? Have councillors been briefed, and how do they relate to the Hyam Street and Bridge Road sites on the land sale list?

Question 5. You said the developer contributions plan means investors contribute more, which "eases the pressure on rent". What evidence shows that, given the proposed deferral of the affordable housing contributions scheme and the $5,987,934.75 of water and sewer developer-charge concessions in 2024-25?

Question 6. You said "we've got the LEP review underway". Which review, under which resolution, and when will councillors and the public see its content?

Question 7. You said "we've offered to take them over", about State roundabouts. When was the offer made, to whom, on whose authority, and what was the response?

Part 2: your role under the Act

I put this part plainly, because the transcript raises a question I would rather ask than assume.

Section 223(1) of the Act sets out the role of the governing body. It includes "to direct and control the affairs of the council in accordance with this Act" (
a), "to develop and endorse the community strategic plan, delivery program and other strategic plans, programs, strategies and policies of the council"
(e), "to determine and adopt a rating and revenue policy and operational plans" (
f), and "to be responsible for ensuring that the council acts honestly, efficiently and appropriately"
(l). Under paragraph (i) it monitors the general manager's performance.

Section 335 sets out yours: “to conduct the day-to-day management of the council in accordance with the strategic plans, programs, strategies and policies of the council” (a), “to implement, without undue delay, lawful decisions of the council” (b), and “to advise the mayor and the governing body on the development and implementation of the strategic plans, programs, strategies and policies of the council” (c). Section 226(c) makes the Mayor “the principal member and spokesperson of the governing body, including representing the views of the council as to its local priorities”. What the transcript shows. In about 6,300 words, the word “Mayor” does not appear.

Councillors are mentioned three times:

twice as “dedicated”, and once in a list of people whose wellbeing must be protected. The only decisions attributed to elected bodies are those of “our councils in years gone by”. I found no present or future decision on rating, land, zoning, FOGO or a hotel attributed to the councillors. Those decisions are voiced in the first person or as a necessity:
• “I've got to shift us from being an organisation which in years gone by land-banked...”

- “there's got to be decisions made”
- “We've got to introduce FOGO in the next couple of years.”
- “I know the rating structure is wrong.”
- “I would like to see a new hotel in [Nowra]”

A listener could reasonably conclude that the CEO decides Council's direction on rates, land, zoning, FOGO and a new hotel. The Act gives those decisions to the elected councillors, and in planning to the Minister. So I ask:

Question 8. Do you accept that the rating and revenue policy is for the governing body to determine and adopt under s 223(1)(f), and that your function in relation to it is to advise under s 335(c)?

Question 9. Do you accept that the same applies to Council's land disposal policy, the content of any planning proposal (subject to the Minister's decision), whether and when to introduce a new service such as FOGO, and any decision on a Nowra hotel?

Question 10. Did you advise the Mayor and councillors of the views you expressed on the podcast before you expressed them publicly? If so, when and how?

Question 11. Do you accept that, unless Council has resolved otherwise, the views you gave on those matters are yours and not Council's position? Will you publicly clarify that Council has set no FOGO start date, if that is the case?

Question 12. You said “the buck stops with me”. Do you accept that under s 223(1)(l) the governing body is responsible for ensuring the council acts honestly, efficiently and appropriately, and that the councillors, not the CEO, answer to the community at an election for decisions on rates, land and services?

Question 13. Have you received a briefing or induction on the respective roles of the governing body, the Mayor and the general manager under ss 223, 226 and 335? When? Do the performance criteria in your agreement address public comment and the boundary between advising and deciding?

I ask you to confirm in writing that you understand your role as set out above, or to say where you disagree.

I ask for a response by 5.00pm on Tuesday 24 November 2026. If any question cannot be answered, please say which and why, so the reason can be reported accurately.

I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group. If no reply is received by that time I will report that plainly.

No adverse finding has been made against any councillor or officer, and none is implied. Quotations are taken from a transcript of the podcast. Every other statement of fact is drawn from the legislation, from Council's published documents or from the sources in the article linked above. I will correct any error promptly and with the same prominence.

Yours sincerely,

Stephen Prothero
Independent community journalist | Publisher, Eye on Shoalhaven Council

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